CADES SCHUTTE
A Limited Liability Law Partnership

CALVERT G. CHIPCHASE 7757-0
JARRETT A. DEMPSEY 10774-0
Cades Schutte Building
1000 Bishop Street, Suite 1200
Honolulu, HI 96813-4212
Telephone: (808) 521-9200

Attorneys for Third-Party Defendant
THYSSENKRUPP ELEVATOR
CORPORATION

Electronically Filed
FIRST CIRCUIT
1RC191003776
17-NOV-2020
03:56 PM
Dkt. 132 ORDG

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors,

Plaintiff,

v.

NIKODEM PIKOR,

Defendant.

CIVIL NO. 1RC19-1-003776

ORDER GRANTING THIRD-PARTY DEFENDANT THYSSENKRUPP ELEVATOR CORPORATION'S MOTION FOR CERTIFICATION PURSUANT TO RULE 54(b) OF THE HAWAI'I DISTRICT COURT RULES OF CIVIL PROCEDURE

Hearing:

Date: June 29, 2020
Time: 8:30 a.m.
Judge: Honorable Michael K. Tanigawa

NIKODEM PIKOR,

Third-Party Plaintiff,

v.

THYSSENKRUPP ELEVATOR

(caption continued on next page)

CORPORATION, Foreign Profit Corporation,

Third-Party Defendant.

ORDER GRANTING THIRD-PARTY DEFENDANT THYSSENKRUPP ELEVATOR CORPORATION'S MOTION FOR CERTIFICATION PURSUANT TO RULE 54(b) OF THE HAWAI'I DISTRICT COURT RULES OF CIVIL PROCEDURE

Third-Party Defendant THYSSENKRUPP ELEVATOR CORPORATION's ("**TKE**") Motion For Certification Pursuant to Rule 54(b) of the Hawai'i District Court Rules Of Civil Procedure, filed April 7, 2020 (the "**Motion**"), came on for hearing on June 29, 2020, at 8:30 a.m. before the Honorable Michael K. Tanigawa.

Calvert G. Chipchase, Esq. and Jarrett A. Dempsey, Esq. appeared on behalf of TKE. No other parties made an appearance, and no opposition to the Motion was filed.

The Court, having reviewed the Motion, memoranda, declaration and exhibits submitted, having heard the argument of counsel, and there being no opposition to the Motion, hereby finds and orders as follows:

The Motion is GRANTED. The Court expressly determines, pursuant to Rule 54(b) of the Hawai'i District Court Rules Of Civil Procedure, that there is no just reason for delay and directs the entry of final judgment in favor of TKE and against DEFENDANT/THIRD-PARTY PLAINTIFF NIKODEM PIKOR.

This order may be signed in counterparts.

IT IS SO ORDERED.

DATED: Honolulu, Hawai'i, NOV 17 2020.

JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

/s/ Glenn S. Horio
Philip L. Lahne, Esq.
Glenn S. Horio, Esq.
Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.

/s/ James Ferguson
April Luria, Esq.
James Ferguson, Esq.
Attorney for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.

Terry M. Revere, Esq.
Amanda Lee Dutcher, Esq.
Attorneys for Defendant/Third-Party Plaintiff
NIKODEM PIKOR